

The Agar Agar Grading and Marking Rules, 2014

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The Agar Agar Grading and Marking Rules, 2014

UNION OF INDIA

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The Agar Agar Grading and Marking Rules, 2014

Rule THE-AGAR-AGAR-GRADING-AND-MARKING-RULES-2014 of 2014

Published on 11 August 2014

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The Agar Agar Grading and Marking Rules, 2014

Published vide Notification New Delhi, the 11th August, 2014

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 575(E). - Whereas, the draft of Agar Agar Grading and Marking Rules, 2014, was published as required by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide notification number G.S.R. 580(E) dated the 29th August, 2013 inviting objections and suggestions from all persons likely to be affected thereby within forty five days from the date on which copies of the said notification published in the Gazette of India were made available to the public;

And, whereas, copies of the said notification were made available to the public on the 2nd September, 2013;

And, whereas, the objections and suggestions received from the public in respect of the said draft rules have been duly

considered;

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937), and in supersession of the Agar Agar Grading and Marking Rules, 1979, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely :-

1.

Short title, application and commencement.

(1)

These rules may be called the Agar Agar Grading and Marking Rules, 2014.

(2)

They shall apply to Agar Agar extracted from red algae of the class Rhodophyceae, such as Gelidiella species and Gracilaria species.

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India;

(b)

"Authorised packer" means a person or a body of persons who has been granted a Certificate of Authorisation to grade and mark Agar Agar in accordance with the grade standards and procedure provided under these rules;

(c)

"Certificate of Authorisation" means a certificate issued under the provisions of the General Grading and Marking Rules, 1988 authorising a person or a body of persons to grade and mark Agar Agar with the grade designation mark;

(d)

"General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

(e)

"grade designation mark" means the Agmark insignia referred to in rule 5; and

(f)

"Schedule" means a Schedule appended to these rules.

(2)

Words and expression used in these rules and not defined but defined in the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) and the General Grading and Marking Rules, 1988 shall have the meanings respectively assigned to them in the said Act and the said rules.

3.

Grade designations.

- The grade designations to indicate the quality of Agar Agar shall be as set out in column 1 of the Table in Schedule II.

4.

Quality.

- For the purposes of these rules, the quality of Agar Agar shall be as specified in Schedule II.

5.

Grade designation mark.

- The grade designation mark shall be "AGMARK insignia" consisting of a design incorporating the Certificate of Authorisation number, the word "AGMARK", name of commodity and grade designation resembling the design as set out in Schedule I.

6.

Method of packing.

(1)

Agar Agar shall be packed in new, sound and clean plastic containers of food grade, tin containers, paper cartons with polythene lining, laminated polyethylene or polypropylene or high density polyethylene bags or pouches or any other food grade material approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

The packing material shall be free from insect and fungal infestation and should not impart any toxic substance or undesirable odour or flavour to the product.

(3)

Agar Agar shall be packed in pack sizes as per the provisions of the Legal Metrology (Packaged Commodities) Rules, 2011 made under sub-section (1) read with clauses (j) and (q) of sub-section (2) of section 52 of the Legal Metrology Act, 2009 (

1 of 2010

) or as per the instructions issued by Agricultural Marketing Adviser from time to time.

(4)

Graded material of small pack sizes of the same lot or batch and grade may be packed in a master container with complete details thereon along with grade designation mark.

(5)

Each package shall contain Agar Agar of the same type and of the same grade designation.

(6)

Each package shall be properly and securely closed and sealed so as to preclude any contamination.

7.

Method of Marking.

(1)

The grade designation mark shall be securely affixed to or printed on each package in a manner approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules.

(2)

In addition to the grade designation mark, following particulars shall be clearly and indelibly marked on each package, namely :-

(a)

Name of the commodity;

(b)

Grade;

(c)

Variety or trade name (optional);

(d)

Lot number;

(e)

Date of packing;

(f)

Address of the place of packing;

(g)

Net weight;

(h)

Name and address of the packer;

(i)

Maximum retail price (inclusive of all taxes);

(j)

Best before _____ month _____ year;

(k)

any other particulars as may be specified under the Legal Metrology (Packaged Commodities) Rules, 2011 made under

Legal Metrology Act, 2009 (1 of 2010)

), Regulations notified under the Food Safety and Standards Act, 2006, (34 of 2006) any other law being in force or instructions issued by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with the General Grading and Marking Rules.

(3)

The ink used for marking on packages shall not contaminate the Agar Agar.

(4)

The authorised packer, may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 11 of the General Grading and Marking Rules, mark his private trade mark or trade brand on the graded packages which do not indicate quality other than that indicated by the grade designation mark affixed to the graded packages in accordance with these rules.

8.

Special conditions of Certificate of Authorization.

(1)

In addition to the conditions specified in the sub-rule (8) of rule 3 of the General Grading and Marking Rules, every authorised packer shall follow all the instructions specified by the Agricultural Marketing Adviser from time to time.

(2)

The authorised packer shall either set up his own laboratory or have access to an approved State Grading Laboratory or cooperative or association laboratory or a private commercial laboratory manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules for testing the quality of Agar Agar.

(3)

The premises shall be maintained in hygienic and sanitary conditions with proper ventilations and well lighted arrangement and the personnel engaged in these operations should be in sound health and free from any infectious, contagious or communicable diseases.

(4)

The authorised packer shall have storage facilities with pucca floor and free from rodent and insect infestation.

(5)

The authorised packer and the aforesaid approved chemist shall comply with all instructions regarding testing, grading, packing, marking, sealing and maintenance of records which may be issued by the Agricultural Marketing Adviser or an officer authorised by him in this behalf in accordance with the General Grading and Marking Rules from time to time.

I

(See rule 5)

(Design of Agmark insignia)

Name of commodity _____

Grade _____

II

(See rules 3 and 4)

Grade designation and quality of Agar Agar

1. Agar Agar is dried hydrophilic, colloidal substance extracted from red algae of the class Rhodophyceae, such as Gelidiella species and Gracilaria Species and it may be in the form of bundles consisting of thin membranous strips or in cut, flaked, granulated or powdered form for human consumption.

2. Minimum requirements: (i) Agar Agar shall be -

(a)

colourless, white to pale yellow in colour;

(b)

either odourless or having slight characteristic odour and mucilaginous taste;

(c)

insoluble in cold water but soluble in boiling water;

(d)

free from traces of chemicals, artificial colouring and bleaching matter;

(e)

free from rodent hair and excreta;

(f)

free from living and dead insects, insect fragments, parasites;

(g)

free from any foreign matter.

(ii)

Agar Agar shall comply with the restrictions in regard to residual levels of metal contaminants, insecticides and pesticides, microbial requirements, crop contaminants, naturally occurring toxic substances and other food safety requirements as specified under the Food Safety and Standards (Contaminants, Toxins and Residues) Regulations, 2011 and the Food Safety and Standards (Food Products Standards and Food Additives) Regulations, 2011, made under the Food Safety and Standards Act, 2006 (

34 of 2006

), for domestic trade.

(iii)

Agar Agar shall comply with the residual limits of heavy metals, pesticides and other food safety requirements as laid down by the Codex Alimentarius Commission, or importing countries requirement for exports.

3. Criteria for grade designation and quality of Agar Agar:

Table

Grade designation

Water absorption (minimum)

Moisture, per cent. by mass on drying (maximum)

Total ash, per cent. by mass (maximum)

Acid insoluble ash, per cent. by mass (maximum)

Water insoluble matter, per cent. by mass (maximum)

Gelatin

Starch and dextrines

1

2

3

4

5

6

7

8

Special

5 times of its weight

18

6.0

0.3

1.0

Not detectable*

Not detectable**

Standard

5 times of its weight

20

6.5

0.5

1.0

Not detectable*

Not detectable**

* Dissolve about 1 gram of the material in 100 millilitres of boiling water, and allow to cool to about 50°C. To 5 millilitres of the solution, add 5 millilitres of trinitrophenol. No turbidity shall appear within 10 minutes.

** Prepare 0.5 percent aqueous solution of the material, warm it to 40°C and add 2 drops of iodine solution. Where the drops fall a red-violet colour shall appear. On mixing, the solution shall become golden brown and not blue or reddish in colour.

4. Other requirements: -

(i)

The condition of the Agar Agar shall be such so as to enable it

(a)

to withstand transport and handling; and

(b)

to arrive in satisfactory condition at the place of destination.

(ii)

Agar Agar shall be stored in cool and dry place maintained in a clean and hygienic condition.

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